

EMERGENCY ASSISTANCE LOAN AGREEMENT

G1. PARTIES

This Emergency Assistance Loan Agreement (“the Agreement”) is entered into between:

Gemini Moon Trading 7 (Pty) Ltd t/a XL Nexus Travel (“The Company”)

and

(Employee Full Name & ID Number) (“the Employee”).

Employee Physical Address: _____

G2. PURPOSE

2.1 This Agreement regulates a short-term, interest-free emergency financial assistance loan granted at the sole discretion of the Directors.

2.2 This loan is not linked to personal travel, airline debit memos, operational errors, or any form of incentive benefit.

2.3 The granting of this loan does not create a precedent or entitlement to future financial assistance.

2.4 The Employee consents to the Company processing their personal information for purposes of administering this Agreement, enforcing its terms, and pursuing lawful recovery where necessary, in accordance with applicable legislation, including the Protection of Personal Information Act.

2.5 This Agreement constitutes the entire agreement between the parties regarding the subject matter herein and supersedes any prior discussions, representations, or understandings, whether written or oral.

2.6 No amendment, variation, or waiver of any provision of this Agreement shall be valid unless recorded in writing and signed by both parties.

2.7 This Facility does not constitute a credit agreement as contemplated in the National Credit Act.

G3. LOAN AMOUNT

3.1 The Company agrees to advance the Employee the amount of:

R _____ (“the Loan Amount”). _____

3.2 The Loan Amount is granted on an interest-free basis. _____

3.3 A certificate signed by a Director or authorised Finance representative of the Company reflecting the amount outstanding shall constitute prima facie proof of the indebtedness and the amount due, unless the contrary is proven. _____

G4. REPAYMENT TERMS

4.1 The Employee agrees to repay the Loan Amount in full within a maximum period of six (6) months. _____

4.2 Repayment shall occur as follows: _____

Monthly payroll deduction of R _____

Commencing on _____

Final instalment date _____

4.3 The repayment period shall not exceed six (6) consecutive months under any circumstances. _____

4.4 The Employee expressly consents, in terms of section 34 of the Basic Conditions of Employment Act, to the payroll deductions contemplated in this Agreement. _____

4.5 The Company may allocate up to 50% of any incentive payable to the Employee toward settlement of the outstanding balance on the basis of oldest debt first. _____

4.6 The Employee acknowledges that the debt recorded in this Agreement constitutes a valid, liquid, and enforceable obligation. _____

G5. DEFAULT

5.1 The Employee shall be in default if: _____

- a) any instalment is not paid when due;
- b) the Employee resigns prior to full repayment; or
- c) the Employee is dismissed for misconduct.

5.2 Upon default, the full outstanding balance shall become immediately due and payable. _____

5.3 The Company may: _____

- a) deduct any outstanding balance from remuneration, incentives, or other payments lawfully due;
- b) require the Employee to enter into a Settlement Agreement Upon Termination; and
- c) institute legal recovery proceedings where necessary.

G6. LEGAL COSTS

In the event that legal recovery action is required due to breach or default, the Employee shall be liable for all reasonable legal costs incurred on an attorney-and-client scale, including collection and tracing fees, to the extent permitted by law. _____

G7. DOMICILIUM AND NOTICES

G7.1 The Employee chooses the residential address and email address provided in this Agreement as their domicilium citandi et executandi for all purposes arising from this Agreement.

G7.2 Any notice or demand sent to such address or email shall be deemed to have been received:

- (a) on the date of delivery if delivered by hand;
- (b) three (3) business days after posting by registered mail; or
- (c) on the date of transmission if sent by email.

G7.3 The Employee undertakes to notify the Company in writing of any change of address or email.

G8. NO WAIVER

G8.1 Failure by the Company to enforce any provision of this Agreement shall not constitute a waiver of its rights.

G9. GOVERNING LAW

G9.1 This Agreement shall be governed by the laws of the Republic of South Africa, and the parties consent to the jurisdiction of the Magistrates Court having jurisdiction, notwithstanding that the amount claimed may exceed the normal jurisdiction of such court.

G10. SIGNATURES

Signed at _____ on this ____ day of _____ 20____.

For the Company:

Name: _____

Title: _____

Signature: _____

Employee:

Name: _____

Signature: _____